



Council debates Flock contract renewal as public safety concerns persist

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Concerns about public safety arose on Monday as Toledo City Council's Public Safety Committee considered a contract extension with Flock Group Inc. for portable automatic license plate readers.

The proposed ordinance would amend Toledo's existing agreement with Flock for a one-year extension for the operation of portable license plate readers through the Toledo Police Department's Real-Time Crime Center.

Support came primarily from Toledo police officials, prosecutors, and Flock representatives, who argued the technology has become an essential tool for investigations.

Deputy Chief Kevin Braun told council that Flock technology has assisted in investigations of all sorts of crimes.

“Just about every felony case has used Flock in one way or another,” he said. “I can't overstate how useful it is.”

Maggie Koch, an assistant Lucas County prosecutor, said the cameras have become an important source of evidence in criminal cases.

“I cannot stand in front of a jury of our community and say, ‘Find this individual guilty because I said so,’” she said. “There has to be evidence, and Flock cameras have assisted us.”

Council presented substantial questions to Flock representatives in attendance.

Councilman Theresa Gadus cited reports from Washington state that examined how outside agencies accessed license plate reader data.

“How can the city of Toledo ensure that that doesn't happen here?” she asked.

Trevor Chandler, senior director of public affairs of Flock, said the company does not own data collected by local agencies.

“Every city has control over what they share and who they share it with,” he said.

Addressing concerns raised by Ms. Gadus regarding the handling of sensitive information, Mr. Chandler said data is permanently deleted once retention periods expire.

“Once that data is deleted, it is hard deleted off of all of the servers,” he said.

Ms. Gadus also raised concerns about reports from other jurisdictions involving searches related to immigration and reproductive health.

Mr. Braun said Toledo has enabled filters that block both immigration and reproductive health searches.

Councilman Erin Kramer asked about oversight mechanisms designed to prevent misuse of the system.

Mr. Chandler emphasized the security measures that Flock has put into place.

“We are every month putting in additional features,” he said. “We're working to make it easier to identify patterns and potential misuse.”

He said improper use of Flock has only occurred in isolated cases.

“There have been publicly reported maybe two dozen examples of misuse,” Mr. Chandler said. “We have around 100,000-plus users of Flock per month.”

Councilman George Sarantou expressed support of the system, echoing that reported misuse cases represent a small fraction of its overall use.

“Only two dozen cases out of at least one billion,” he said

Public commentary during the meeting was extensive, with a majority of individuals opposed to the technology due to risks to privacy and civil liberties.

Susan Kuehn, co-chair of the Northwest Ohio Peace Coalition, said the cameras are an offense to First Amendment rights.

“Flock cameras have been used and will be used against activists simply exercising their right of free speech,” she said.

Tom Pruss, Libertarian candidate for Ohio Secretary of State, described the issue as a choice between expanded government surveillance and individual privacy protections.

“This is a discussion of the relationship between citizens and government,” he said. “Mass surveillance treats every citizen as a potential suspect.”

Rebecca Bundy, a Toledo attorney, urged council members to consider how surveillance technologies unequally affect minority residents.

“Safety depends very much on who is the watcher and who is the watched,” she said. “So I ask this council again to stand up for members of our community who are most vulnerable.”

Council is expected to vote on the contract Tuesday, following the defeat of a two-year extension proposal last week.

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